

		oppose the motion, Plaintiff did not meet her burden of proving any fact necessary to its defense. This action is stayed pending completion of arbitration. (<i>Code Civ. Proc.</i>, § 1281.4.) <i>Counsel for Defendants shall provide notice of this ruling.</i>
10.	Conlisk v. Montelongo 25-1487772	Before the Court is a motion to strike filed by defendants Joel Montelongo and Ghazal & Sons, Inc. dba All American Plastic & Packaging (Defendants) as to portions of the first amended complaint (FAC) of plaintiff Kristy L. Conlisk (Plaintiff). For the reasons set forth below, the motion is GRANTED with 10 days' leave to amend. The FAC alleges facts sufficient to show malice and/or conscious and deliberate disregard for the safety of others, but there are insufficient facts showing corporate liability including conduct by an officer, director or managing agent. (<i>Code of Civ. Proc.</i> § 436 [standard]; <i>Civ. Code</i> § 3294, subd. (b),(c)(1).) <i>Counsel for Defendants shall give notice of this ruling.</i>
11.	Hertzske v. Wood 26-1571720	(Continued)
12.	Doe v. Hawkeye Wrestling Club 23-1324446	The motion for summary judgment or, in the alternative, summary adjudication filed by defendant United States of America Wrestling Association (USA Wrestling) directed to the complaint of plaintiff John SKC Doe, by and through his guardian ad litem, Jane SKK Doe (Plaintiff) is DENIED. The party moving for summary judgment "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (<i>Food Safety Net Services v. Eco Safe Systems USA, Inc.</i> (2012) 209 Cal.App.4th 1118, 1124.) A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto. (<i>Code Civ. Proc.</i>, § 437c(p)(2).) A defendant does not satisfy its burden of proof by producing evidence that does not exclude the possibility that plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) "There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element ... necessary to sustain a judgment in his favor." (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted).)

USA Wrestling failed to meet its initial burden. USA Wrestling's motion focuses on its alleged direct liability for failing to protect Plaintiff from the sexual abuse of defendant Daniel Mills (Mills). The complaint, however, also alleges a theory of vicarious liability against USA Wrestling based on the conduct of defendants Cliff Jarmie, Monica Serratos and Fernando Serratos, who are alleged to have enabled the abuse of Plaintiff. " '[A] principal who personally engages in no misconduct may be vicariously liable for the tortious act committed by an agent within the course and scope of the agency.' " (*Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 1077, 1106.)

The complaint alleges Cliff Jarmie, Monica Serratos and Fernando Serratos are "the agents, representatives and/or employees" of USA Wrestling and all acts or omissions of said defendants as alleged in the complaint were within the course and scope of said agency, representation and/or employment. (Compl., ¶ 25.) Specifically, the complaint alleges these individual defendants knew of Mills' history of sexual misconduct, but they concealed this history and allowed Mills to coach minors, including Plaintiff. (Compl., ¶ 3.) The complaint further alleges when Plaintiff's parents informed Cliff Jarmie, Monica Serratos and Fernando Serratos of the abuse of Plaintiff, these individual defendants attempted to cover up the allegations and retaliated against Plaintiff by prohibiting him from returning to Hawkeye Wrestling Club (HWC) events. (Compl., ¶ 24.)

The pleadings serve as the "outer measure of materiality" in a summary judgment motion. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74—"the pleadings determine the scope of relevant issues on a summary judgment motion".)

Therefore, in order to obtain summary judgment, it was incumbent upon USA Wrestling to offer evidence and argument in its moving papers addressing all theories of liability alleged against them, including the theory that USA Wrestling is vicariously liable for the conduct of its alleged agents, Cliff Jarmie, Monica Serratos and Fernando Serratos. USA Wrestling failed to do so and thus failed to meet its initial burden on this motion. (*Hedayati v. Interinsurance Exchange of Automobile Club* (2021) 67 Cal.App.5th 833, 846—defendant who does not address an issue in its summary judgment motion that was raised in plaintiff's complaint fails to meet its initial burden of showing plaintiff's action has no merit.)

USA Wrestling did present evidence with its moving papers generally showing that USA Wrestling does not operate, manage, or control the day-to-day activities of local clubs like HWC. (See UMF 6-7.) This evidence, however, does not exclude the possibility that Plaintiff may possess or may reasonably obtain evidence sufficient to show that, in

		this instance, Cliff Jarmie, Monica Serratos and Fernando Serratos acted as agents of USA Wrestling in committing the acts complained of. In the absence of argument or evidence in the moving papers pertaining specifically to Cliff Jarmie, Monica Serratos and Fernando Serratos and specifically addressing USA Wrestling's relationship with these defendants, the court cannot find as a matter of law that these individuals were not agents of USA Wrestling and that USA Wrestling cannot be vicariously liable for their conduct. Accordingly, the motion is DENIED. Plaintiff's request for judicial notice is DENIED. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) The Court declines to rule on USA Wrestling's evidentiary objections as not material to the disposition of the motion. (<i>Code Civ. Proc.</i>, § 437c(q).) <i>Counsel for Plaintiff shall give notice.</i>
13.	Randall v. Morena 21-1193717	Before the Court is the Motion for Summary Judgment, or in the Alternative, for Summary Adjudication, filed on 12/18/25 by Defendants Farzin Morena and Jai Ho Capital ("Defendants"). The Motion is DENIED, as it fails to show that the claims presented by Plaintiff Paul Randall ("Plaintiff") in his Second Amended Complaint ("SAC") are necessarily barred as a matter of law. Defendants assert that Plaintiff's claims are time-barred, as the evidence shows that they accrued by no later than July 2018. (UF 22-26.) But Defendants have not shown that this is so as to the Fifth Cause of Action, for Conversion. Summary Judgment thus cannot be obtained here, based on limitations arguments. Nor have Defendants shown that the claims would be time-barred to the extent that they concern Plaintiff's alleged collateral, which is addressed in each claim in the SAC. Summary adjudication is available only if it completely disposes of a cause of action, affirmative defense, claim for damages, or issue of duty. (<i>C.C.P.</i> § 437c(f)(1).) That is not shown here. Defendants also assert that all claims in the SAC are barred based on illegality. Illegal contracts are unenforceable. (<i>Homami v. Iranzadi</i> (1989) 211 Cal.App.3d 1104, 1111-1113.) But although the alleged oral agreement concerning the check may have been designed for unlawful purposes such as tax evasion and/or money laundering, that has not yet been established. Defendants deny that any such agreement existed (UF 12-18), and Plaintiff has not conceded such intent (UF 30). Defendants also have not attempted to show that there was illegality regarding the claims as to the alleged collateral.